A20-869/3

What About the Secret Treaties?

By The Foreign Editor of "THE NEW AGE"

"I do not agree that no explanations of the secret treaties are needed. The texts, however they have been made known to us, are now public knowledge and of public concern. Apprehension concerning their meaning is perfectly natural and perfectly legitimate. Consideration of them is a public duty."

APPLICATIONS FOR ADDITIONAL COPIES SHOULD BE ADDRESSED TO

THE LIBRARY OF WAR LITERATURE
511 FIFTH AVENUE, NEW YORK

Price, Ten Cents

3 1761 09428732 3

What About the Secret Treaties?

IN view of the misunderstandings, some honest and some not, that have been produced by the unofficial publication of certain secret treaties made between this country and several of its Continental Allies during the war, I am venturing to inquire at some length into their purpose and character. I must disclaim at once the possession of any official or secret information. My information is such only as is accessible to the diligent student of public affairs; and my deductions are open to be made or questioned by any intelligent citizen. My sole claim for them is that, at the same time that they are more favorable to our statesmen, they are also more probable than the deductions of the pacifists; for whereas the hypotheses of the pacifists cover only a selection of the facts, my hypotheses cover all the facts, or, at least, as many as have been brought to public notice.

Demand for Explanation Justifiable

I may begin by saying that I do not agree that no explanations of the secret treaties are needed. The texts of the secret treaties, however they have been made known to us, are now public knowledge and of public concern. Apprehension concerning their meaning is perfectly natural and perfectly legitimate. Consideration of them is a public duty; and I, certainly, have no complaint to make of the fact that the pacifists have insisted upon discussing them. On the other hand, we must not fall into the error of suspecting, as the pacifists do, that because the secret treaties require to be explained, therefore no satisfactory explanation of them exists; and that all explanation is a vain attempt to explain away. Usually when a man "demands an explanation" he is looking for a bone of contention and means to find one, meat or no meat upon it. It is not in this mood, however, that we ought to demand an explanation of the secret treaties, but in the mood of being hopeful of finding an explanation and willing to accept a satisfactory answer.

As I have been able to gather them, the main charges brought against the secret treaties are these: They are, or were designed to be, secret; they propose to transfer territory from one Power to another, without regard to the principle of no annexations and of the self-determination of peoples; they are inconsistent with the anti-imperialist and democratic declarations of the Allies in the present war; and, finally, and in consequence of these defects, they are responsible, if not for Germany's initiation of the war, at least, then, for Germany's desperate prolongation of

the war. There are other charges and suspicions entertained in regard to the secret treaties, for example, that they betray an imperializing tendency on the part of England and her Allies, or again, that they are designed to ruin the commerce of Germany, with the sole object of benefiting Allied trade; but these apprehensions will, I think, be found to be included in the four charges I have enumerated; and it is therefore to these four that I propose to limit my replies.

Why the Treaties Were Secret

To the first and last of the four it is possible to return comparatively brief answers. In view of the fact that we were at war with Germany, and, before the first treaty was signed, had been long enough (eight months) at war with her to take her full measure, there is nothing to be wondered at if the terms of the treaties were not disclosed for the information of her militarist rulers. Moreover, the purpose of the treaties could not but include, among other objects, the object of strengthening the alliance against Germany and of correspondingly weakening Germany, being, as they must in part have been, proposals for a political and diplomatic defense precisely similar in character to the plans for a joint military and naval defense. If, therefore, it would have been unwise (to say the least of it) to publish broadcast our military and naval plans, it would surely have been no less unwise to publish broadcast our political and diplomatic plans. The secrecy of the treaties, in other words, was enjoined on us by elementary policy; and it may be pointed out that so long as there are dangerous autocracies in the world, the secrecy of even the most democratic diplomacy will need to be imperative.

As for the charge that the secret treaties, if they did not induce Germany to begin the war, at any rate provoked her into continuing it long after she might otherwise have ended it, I am only surprised at the moderation of its authors. Why make a reservation of the initiation of the war and confine the effect of the secret treaties merely to prolonging it? By an intelligent anticipation of what the Allies were about to agree upon, and of what they would plan together if attacked, Germany might well have employed the secret treaties, even before they came into actual existence, as a reason for declaring war. Were not the secret treaties in the Allies' hearts if not on paper; and must not Germany be justified by one means or another? The truth is, however, that monstrous as it would be to regard the secret treaties as having driven Germany to declare war, it is equally ridiculous to hold them responsible for Germany's continuation of the war. Eight months of war, we must remember, had passed before a single treaty was made; and during that time the most obliging observers had failed to discover one trustworthy sign that Germany was prolonging the war for anything less than an abounding conquest. The only reasonable deduction to be made is that Germany would have prolonged the war to the present moment and for as long as she has hopes of victory, even if no secret treaty had ever existed. A punishment you expect to be able to avoid, if not to turn upon the other party, is no deterrent to crime.

To deal with the two remaining charges brought against the secret treaties will require, as a preliminary, the rehearsal of a certain number of elementary but often forgotten facts. It is surprising how many people criticize a Foreign Minister without having formed an exact idea of his duties, and, still more, without taking into account the circumstances in which he must perform them. Both considerations are essential, however, if a just judgment is to be passed, whether favorable or unfavorable, on the Minister or Cabinet in question. Moreover, it would be as well to point out that both the duty and the circumstances in which a Foreign Minister is placed are not by any means of his own creation or dependent upon his own personal or even party likes and dislikes. The duty of a British Foreign Minister is defined in the nature of his office; and it would be the same for Mr. MacDonald or Mr. Snowden, let us say, as it has been for Viscount Grey or Mr. Balfour. Similarly, the circumstances in which any Foreign Minister takes up his office are a legacy not only of his immediate predecessors, but of the foreign policies of all the other nations of the world. His duty is such and such, the circumstances given are such and such; and it is necessary to realize both facts in order to arrive at a judgment of his conduct. Now what is implied in the office of a British Foreign Minister? What is the duty he is appointed and paid to discharge at the risk of dismissal? It is high-falutin' to pretend that his immediate and only concern is to bring heaven upon earth, or to elaborate international fraternity within the period of his tenure of office. I am not affirming that these are not noble objects of policy, or that a British Foreign Minister ought not to keep them in view as his guiding stars. They are, indeed, the ultimate purpose for which the relative purposes of temporal policy ought to exist. On the other hand, though hitched to a star, it is the wagon as well as the direction for which a British Foreign Minister is officially responsible; and the wagon in our particular case is, in a phrase, the maintenance of the British Commonwealth.

Policy and the British Commonwealth

People sometimes talk as if the maintenance of the British Commonwealth, or of any other national group, for that matter, were an event of nature and not of policy. Like Topsy, the British Commonwealth is supposed to have "growed," and to owe its continuance to the same mysterious process. But, in truth, a nation, like all the other works of man, is a creation of art, and, therefore, like all other works of art, liable to change and decay with the ability and temper of the men who are responsible for its maintenance. History is the record of the fall as well as of the rise of nations. The rise and maintenance of nations are the result of good policy, as their decline and fall are the result of bad policy.

This being the case, we have now to inquire whether there are any particular conditions upon which the maintenance of the British Com-

monwealth depends; to be brief, the maintenance of England, which is the keystone of the arch of the Commonwealth. Is there any particular danger to be feared and guarded against by any Foreign Minister entrusted with the duty of his office? The reply is that there are several and, perhaps, many such conditions; but that the chief of them (and, in any event, the one most relevant to our present purpose) is the maintenance of the "balance of power" on the European Continent. I cannot conceive the state of mind of any man, and, above all, of any Englishman, who does not appreciate, when it has once been pointed out to him, the importance, the vital importance, for this country of preserving the European "balance of power." It is not the fact that the preservation of the balance of power is a mere advantage to this country—and, hence, to all the ideas and ideals of which England is the symbol—it is a necessity of our existence. For what is meant by the preservation of the balance of power in Europe is nothing less than the prevention of the subjection of Europe to a single Power capable, at one and the same moment, of enslaving Europe and conquering England. There is really nothing recondite about either the phrase or the policy it stands for; nor is there any occasion for attributing its invention and pursuit to this or that Foreign Minister, or to this or that governing class. It is the simple expression of the prime condition of the maintenance in a state of independence of England, and, therefore, of the British Commonwealth; and since this is the unchallengeable fact, we may particularize the duty of the British Foreign Minister as being that of preventing the creation of a hegemony or dominating Power in Europe.

Were the Treaties Designed by Imperialists?

Before going on to consider the circumstances in which, at the outbreak of war, a British Foreign Minister, *any* British Foreign Minister, was placed for the performance of his simple duty of maintaining the balance of power in Europe; and, thereafter, the steps actually taken to maintain it—which will bring us to the secret treaties—we may glance at the character of the man who was then holding this office. Of all the men, without exception, who have held the office of British Foreign Minister, it is probable that the last to be accused by his countrymen of "imperialism" (by which I mean the will to increase the power of England regardless of right and wrong, or of the interests of the rest of the world) is Viscount Grey. In addition to this, it is to be noted that the Cabinet to which he belonged was a Liberal Cabinet, which may, therefore, be supposed rather to have aided and abetted his policy of simple maintenance than to have urged him, against his inclinations, into an "imperialist" policy. Yet, it was Viscount Grey who signed the secret treaties on behalf of the Liberal Cabinet of Mr. Asquith; and upon Viscount Grey, in consequence, all the charges brought against them must finally rest. I do not envy the task our pacifists have set themselves in bringing their charges of imperialism and all the rest of it against Viscount Grey. They are to be pitied rather than condemned in their choice of a person on whom to lay the responsibility of their suspicions; they

would have been safer with any other man than him. But, as it is, their case against the secret treaties must stand or fall with their case against Viscount Grey. If he is not to be convicted of the charges they have brought against the secret treaties, neither can the treaties themselves be so convicted. Nobody, therefore, can charge them with *intentional,* or even potential, imperialism, who is not prepared to prove Viscount Grey an intentional or unwitting imperialist. And we have Prince Lichnowsky's memorandum to silence that charge.

Maintaining the Liberties of the World

There is a simple rule for those who would understand the actions of others, even the most complicated and apparently contradictory actions: it is to put yourself by imagination into their circumstances. All criticism of value, whether of politics, art or men, whether favorable or unfavorable, presupposes this act of Christian charity. Without this "charity," everything else profiteth nothing. Having defined the duty of any British Foreign Minister, and having taken into account the character of Viscount Grey, who was our Foreign Minister at the moment when war broke out, we have now to consider what were the circumstances in which his principal duty was to be discharged. How, in short, and under what circumstances, was he to maintain the balance of power in Europe as a condition of maintaining the British Commonwealth, and as the more remote but still necessary condition of maintaining the liberties of the world? For that the liberties of the world do, in fact, depend on a chain of this kind is a matter of demonstration, though the occasion for making the demonstration is not the present.

The circumstances are too familiar to need elaboration; but they must, nevertheless, be recalled if our argument is to be followed. To premise, it must, above all, be remembered that they could not, in any case, have appeared exactly as we have now come to realize them. When war broke out, who realized that it would last four years, and spread from Europe over the whole world? Who, again, could estimate what would prove to be the strength of Germany or the weakness of some of the other European nations? Let not wisdom after the event be mistaken for wisdom before or in the event. The most ignorant of us to-day knows more than the wisest knew four years ago. There were certain facts, however, for a British Foreign Minister to go upon. There is an etiquette of diplomacy the breaches or observances of which, while ceremony to the general public, are significant to experienced diplomats; and it needed, therefore, no special gift in Viscount Grey, beyond the gift of experience, to surmise, in fact to be certain, that from the omission by Germany of these forms and observances in her approach to and conduct of the events that brought about the war, her action was deliberate, calculated and aggressive. But what, again, did this portend? To what lengths would Germany's aggression proceed? Would it be satisfied with the "punishment" of Serbia, or with the "defense" against Russia, or with another "lesson" to France? Common knowledge of the psychology of Germany

indicated that, exactly as in her military tactics it is her policy to make a push and to exploit what may come of it, so in diplomacy her policy would be to cross the Rubicon first and to trust to frightfulness for the sequel. And the sequel in this case was precisely what was to be feared by any British Foreign Minister, for it was precisely the establishment or the attempt to establish a German hegemony of Europe.

German Aims and German Deeds

It is strenuously affirmed by many people in Germany—and it appears to be accepted as gospel in certain circles in this country—that in entering upon the war Germany had no such object in view as the hegemony of Europe as the means to the domination of the world. The notion, they say, is ridiculous, though it was admittedly entertained by a few uninfluential Pan-German dreamers. The denial, however, is of no value, in view of the national strategy already defined as characteristic of German psychology, and in view, still more, of the unfolding of events as we have witnessed them. For not only was the Rubicon crossed, the Pan-Germans leading, but the subsequent speeches of these "dreamers" leave us in no doubt that but for the unexpected resistance offered by a large part of Europe and, finally, by the rest of the world, Germany would at this moment be master of Europe and mistress of the world. This consummation, now frustrated, was therefore latent as a calculated possibility in Germany's first act of war. We may even say, on looking back, that it was a consummation humanly probable; and that, far from having been mere dreamers, the Pan-Germans who persuaded the German people to cross the Rubicon were no less practical than criminal.

Viscount Grey, as the British Foreign Minister responsible for the discharge of the duty of his office, could not therefore have been mistaken in interpreting German policy as designed to disestablish the balance of power in Europe. Any other Power in Europe, it is conceivable, might have gone to war without of necessity aiming at a European hegemony. But Germany, alone of all the Continental Powers, could not possibly embark upon a war without either aiming at hegemony or, if she won the war, arriving at hegemony even in spite of herself. The end was implicit in the means. The situation before Viscount Grey was thus a challenge to the first condition of the maintenance of the British Commonwealth, a challenge, moreover, thrown down by the most formidable Power in Europe; and if panic had seized upon our Cabinet at the prospect, we should not have been entitled to be surprised at it. Suspecting, indeed, what we have come to know, concerning the unpreparedness of this country and of our European Allies, and of the preparedness of the "uninfluential," "dreaming" Pan-Germans, it is surprising, in fact, that our Cabinet in particular displayed, on the whole, so few signs of alarm. Had it entered into secret treaties of the most extravagant kind, had it committed the very sins with which it is now charged by the pacifist critics of the actual secret treaties, I, for one, should still have hesitated before condemning its members utterly. Mad and bad as such conduct

would have been, it would have been human and intelligible. The fact is, however, that, whether from a false sense of security or from some better cause, Viscount Grey kept his head—a human and a fallible head, no doubt; a head not to be compared, of course, with the heads of some of his critics; but what head he had he kept, with results that we may now examine.

The Allies' Governing Principles

What were the governing principles to be held in mind by any British Foreign Minister finding himself in Viscount Grey's position? In the first place, it was necessary to secure Allies for the purpose of defeating Germany's immediate attempt at hegemony; in the second place, it was necessary to devise plans for ensuring Europe, if that were possible, against any future repetition of that attempt; in the third place, and qualifying the former, it was desirable to see to it that in attempting to avoid one danger we did not run into another.

That England has had to "secure" Allies in a war against an attempt to dominate Europe has been made a subject of reflection upon the motives of both this country and our Allies. But nothing is more ill-conceived than such a charge. It is true that for a nation that fancies liberty the prospect of slavery is alone sufficient to induce its people to take up the sword without the addition of any other motive; but to a nation, however much in love with liberty, that does not realize the imminence of slavery, something supplementary to the motive of deliverance from a perhaps imaginary fear may be necessary. I am not, it must be understood, casting reflections upon any of our Allies; they have all suffered too much too readily to have their complete good faith so much as questioned. But I am assuming that it was not of necessity the case that each and every one of our Allies saw the war, from the moment of its outbreak, in the same light as ourselves. The incredibility of what has only in course of time become clear to everybody—and not even yet to everybody!—was as likely to occur among nations as among individuals; and it is therefore no reproach upon either this country or its Allies that one or other of them needed to be persuaded at first to take the German menace as seriously as it deserved.

To Prevent German Aggression in the Future

But what can the outbreak of the war be said to have proved if not that the actual balance of power in Europe was such that Germany thought herself safe in presuming upon it? We have seen that for Germany it was a war of calculation, of reasonable calculation. Thus and thus, she said to herself, are the forces in Europe distributed; and thus and thus, in consequence, can the war be decided. The balance of power, in other words, was already presumed to be in her favor; and all that was expected of the war was to prove it. In this pre-war disposition of forces we can see, if we like, the occasion of the war itself. No country,

not even Germany, would initiate an aggressive war if she knew for certain that she would be defeated; for even militarist nations love conquest rather than war. But with the calculable chances of victory apparently on her side, it was inevitable, Germanly speaking, that sooner or later the Pan-Germans would prevail upon their country to make war. This consideration, however, leads to another still more relevant to our argument. If a professedly militarist Power is always likely to go to war when the balance of forces seems to be on her side, what else can her peaceful neighbors do but attempt to withhold from her the opportunity? If it is opportunity alone that is wanting to Germany to make war, the plain duty of her neighbors is to secure themselves against the repetition of the opportunity—in other words, to see that never again, while Germany remains militarist, shall the balance of forces in Europe be even calculably in her favor. It is this consideration, I believe, that inspires the second of the two governing principles that were necessarily present in the mind of Viscount Grey in his negotiations with our Allies. Not only were they to be confirmed in the common defense of the liberty of Europe, but measures were to be devised to secure that liberty when it was won by removing from Germany the temptation to future aggression. In a word, the former balance of power, proved by the war to have been unstable, was to be replaced, if possible, by a balance more nearly equal. Perfidious Germany was to be weakened, and the rest of Europe rightly strengthened at her expense.

Here, however, arose a consideration which must be touched with a tender hand. I purposely will not dwell upon it. The best of nations are liable to have their heads turned by power—the worst their hearts as well; and it might conceivably have been the case that in rearranging the balance of power in Europe for the purpose of sobering Germany, we should be intoxicating some other nation. The menace, in any case, could never be so formidable, since no other nation is Germany, and none occupies her peculiar position. But a menace which we had put out of the front door should not be allowed to come in again at the back, even in a less threatening attitude! The point need not be labored to be realized as involving a further necessary consideration in the mind of our Foreign Minister.

The Text of the Treaties

In the light of these governing principles, inseparable from a proper conception of the duty of our Foreign Minister in the circumstances as given, I should like now to refer my readers to the texts of the secret treaties as published. They will be found set out, with a commentary, both in Mr. C. A. McCurdy's "The Truth About the Secret Treaties," published by W. H. Smith and Son, and elsewhere. It is not my intention to examine them in detail, for that would be wearying to the general reader, and superfluous to the student of the texts themselves. All I ask of those who are sore oppressed with doubts concerning them, is that they should examine the texts in the light of the three governing prin-

ciples which I have just laid down; when it will be found, I think, that every clause of the treaties, every effect of them, is designed to answer one or two or all three of the elementary demands of the foreign policy of the British Commonwealth. They are designed, that is to say, to secure our Allies, to safeguard Europe against an early repetition of Germany's attempt at hegemony, and, in President Wilson's phrase, to make the world safe for democracy. I will not go so far as to say that they are (or were) all perfectly designed to one or other of these ends. They are, in fact, open to criticism in detail, if not in principle. But that, as a whole, they are not only so designed, but satisfactorily and justifiably so designed, would be evident, I think, if a comparison be made of the map of Europe in all its aspects as it existed before the war with the map of Europe as it would be left when all the treaties had been carried out. For what should we find? Evidence, in the first place, that Germany had in the interval between the two maps been unmistakably defeated; in the second place, a redistribution of power, economic, political, strategic and national, making for the strengthening of Europe against Germany, and, hence, against the renewal of Germany's war of conquest; yet, in the third place, not so much strengthening of any other Power that when the chamber had been swept and garnished, fresh devils would be likely to enter in and take possession. Had I to defend the treaties before an assembly of the Union of Democratic Control, I could think of no better justification of them than that they would actually, if carried out, have established these results. Nor do I think that a better justification is needed.

How the Treaties Stand To-day

Here I could lay down my pen as if my inquriy were ended; as, indeed, it would be if events had not moved since the last of the treaties had been signed. But since it is the case that in very few respects are the conditions to-day the conditions under which the secret treaties were drawn up, it is necessary to add to their justification at the period of their signature, an account of how they stand at this moment. Whatever the plausibility of the charges brought against the treaties in their fixed condition up to the middle of March, 1917, it is certain that no plausibility can attach to charges brought against them since that date. For, as we shall see, the truth of the matter is that the treaies no longer exist in a binding or definite form. They are propositions, not dispositions; and not all of them are any longer even propositions.

The conditions naturally assumed by the contracting Allies as conditions governing the treaties were, apart from the main condition, namely, the defeat of Germany, the inviolability of the Alliance and the absence of any fresh factor of importance. If Germany should not, in the end, be defeated, it is obvious, of course, that the terms of the treaties between her presumptive conquerors would become null and void. Equally, it is obvious that in the event of the secession from the Alliance of one of the contracting parties, or, again, in the event of the adhesion to the Alliance of a new *principal* party, the treaties, if they should not become totally

null and void, would at least need to be revised. Both these latter events have actually occurred. Russia, one of the chief contracting parties to the secret treaties, went out of the Alliance, and America, a not negligible party, came into it.

At the blow of the first of these two events it might be supposed that the elaborate erection of the treaties would fall like the walls of Jericho. Of the six main secret treaties published in the various editions, four are almost wholly, and two are partly, concerned with Russia. It is a fair estimate that three-fourths of the substance of the treaties were dependent upon the continued adherence of Russia. Again, it might have been supposed that with the substitution of America for Russia in the Alliance, its atmosphere would have been so changed that not even the surviving treaties could live in it. At the least, it might be assumed that the double event must profoundly affect the whole diplomatic structure.

Future Action

Various opinions did, indeed, arise concerning what should be done with the treaties. There were those—there are still those—who would have had the Allies, and England in particular, denounce the whole body of the secret treaties, Russian, French, Italian, Serbian, Roumanian, and, I suppose, Belgian, and start again with a new slate on which nothing should be written save what might be shown to the world, including Germany. These are the pacifist out-and-outers, the men who, never conceivably having put themselves in the place of a responsible Foreign Minister, have never realized the obligations of his office. There were and are those, again, who would allow the mainly Russian agreements to have lapsed with the secession of Russia, but who are of opinion that the rest of the treaties can still be held good. Finally come those who would "leave everything to President Wilson," and who, in the meanwhile, regard the treaties as not dead but never born.

Of the members of the first group it may be remarked that in spite of their professed internationalism they seem never to think of honor, even among the Powers they regard as thieves. The solemn international covenants called treaties, whether secret or open, are, in the opinion of this school, to be denounced by ourselves without regard to the wishes of our cosignatories and Allies. It is true that this country is in alliance with France and Italy among other Powers; it is also admitted that we owe a great deal to our Allies. But we are, nevertheless, to denounce the treaties on which they confirmed their alliance with us at any moment it may happen to appear to suit us! It is unnecessary to say more in reply to this school than that France and Italy are not disposed to accept their ruling. The denunciation of the secret treaties is for the signatory Allies to make; for them and for no single party. The second school of opinion is no less extreme; but for a different reason it is no less impracticable. Admitting that the mainly Russian treaties have lapsed, it cannot be said that they have left unaffected the remaining and only

partly Russian treaties, for these had those in view, and were, in a sense, fitted into them. It is impossible to take away the major parts of an organic whole and leave the minor parts still organically intact. In themselves and apart from their context the surviving parts are either too much or too little. Even supposing, therefore, that the non-Russian treaties should be left, they must submit to modification before they can enter a fresh complete organism.

Finally, as regards the American school, I may at once point out that the members of the school are not to be found in America. America is among our military and naval Allies; but America is not yet among our political and diplomatic Allies. The substitution of America for Russia was, in other words, not a perfectly complete substitution. It follows from this that those who, at the present moment, propose to "leave everything to America," are reckoning without their host, presuming upon a political and diplomatic alliance that does not yet exist.

For Consideration by the Peace Conference

But if, as is the case, the main treaties of the group have lapsed and the minor ones are, in consequence, subject to indefinite amendment, what can be said to be the present state of the treaties—are they dead or alive, operative or inoperative? All good pacifists, I trust, will observe my reply, since it has the warrant of the authoritative speeches of our present Prime Minister, our present Foreign Minister, our present Assistant Foreign Minister, Mr. Asquith, and many others. It is that the treaties are neither dead nor alive, neither operative nor non-operative, neither denounced nor reaffirmed—they are in suspense. But what is it to be "in suspense"? Cannot a plain answer be given such as a plain pacifist can understand? It can. To be in suspense, as the secret treaties now are, is to be on the agenda of the Peace Conference for discussion; it is to be the subject of resolutions to be moved and supported, but not necessarily to be carried. In relation to the secret treaties, this state of suspended animation may be taken as meaning that their texts may be brought up before a Peace Conference and discussed there, but that neither upon the Conference as a whole, nor even upon any or all of the signatories of the treaties will such texts be binding verbatim et literatim. This is what I conceive to be the present state and status of the secret treaties. It is not a dignified position, perhaps; it is not a position to be envied by any official and self-respecting treaty. On the other hand, even if the charges brought against the secret treaties in their prime were true, they could not be laid at the door of treaties in this state; and since the former charges, as we have seen, are not true but false, the treaties in their present plight must be allowed to leave the court without so much as a charge on their character.

The Constitution of the Peace Conference

In conclusion, I may, perhaps, be permitted to speculate on the probable nature of the Peace Conference, at which, it is to be presumed, the

secret treaties will come up for discussion. Nobody knows, at present, what the actual character of the Conference will be, how long it will last, what will be the order of its procedure, or the sum of matters with which it will deal. All these questions depend for their answers upon two main factors at present uncertain: the cast of mind of the representatives of Germany; and the credentials of the representatives of America. Will Germany attend as a criminal caught and brought to the bar unrepentant, or as a contrite partner in the work of reconstruction? Will America attend as a principal and co-plenipotentiary or as a deeply interested but third party with the power of veto by counter-signature? These, as I say, are unsettled matters, but I would draw the attention of pacifists to them as more formative material for consideration than the half-dead, half-alive secret treaties. The *policy* represented by the secret treaties will, in any case, be obligatory upon the Peace Conference; since it is, as regards the future, no less than the prevention of another world-war such as the present; but the texts of the treaties will, also, in any case, be but a small fraction of the matters that will need to be discussed. Their body may thus perish, having served its turn, but their purpose and soul will go marching on.

A List of Important Publications Bearing on the War

"THE IRISH QUESTION: FEDERATION OR SECESSION," by F. S. Oliver, author of "Alexander Hamilton." Price 10c.

"GREAT BRITAIN FOR DEMOCRACY," by Lt.-Col. G. G. Woodwark. Price 10c.

"TREASURY OF WAR POETRY." 289 pages. Price $1.25. (Houghton Mifflin).

"THE WESTERN FRONT," drawings by Muirhead Bone—in two volumes. Price $2.50. (George H. Doran).

"THE WOMAN'S PART," by L. K. Yates. Price 50c. (George H. Doran).

"MY MISSION TO LONDON," by Prince Lichnowsky. Price 10c. (George H. Doran).

"WOMEN OF THE WAR," by Hon. Mrs. Francis MacLaren. Price $1.25. (George H. Doran).

"THE LEAGUE OF NATIONS: THE OPPORTUNITY OF THE CHURCH," by Charles Gore, Bishop of London. 28 pages. Price 10c. (George H. Doran).

"THE BRITISH NAVY AT WAR," by Prof. W. Macneile Dixon. 90 pages. Price 75c. (Houghton Mifflin).

"SUMMARY FOR CONSTITUTIONAL REFORMS FOR INDIA." *Proposals of Secretary of State Montagu and the Viceroy, Lord Chelmsford.* 24 pages. Price 10c.

"GEMS (?) OF GERMAN THOUGHT," by William Archer. 120 pages. Price 25c. (Doubleday, Page).

"ENGLAND AND THE WAR," by André Chevrillon, with a preface by Rudyard Kipling. 250 pages. Price $1.60. (Doubleday, Page).

"A CLEAN PEACE," by Charles A. McCurdy, M. P. 26 pages. Price 10c. (George H. Doran).

"ENGLISH SPEAKING PEOPLES." *Their future relations and Joint International Obligations,* by George Louis Beer. 322 pages. Price $1.50. (Macmillan).

"THE VANDAL OF EUROPE." *An Exposé of the Inner Workings of Germany's Policy of World Domination and its Brutalizing Consequences,* by Wilhelm Mühlon. 335 pages. Price $1.50 net. (Putnam).

"THE GUILT OF GERMANY." *For the War of German Aggression—Prince Karl Lichnowsky's Memorandum. Being the Story of His Ambassadorship at London from 1912 to 1914, also Foreign Secretary von Jagow's Reply.* Introduction by Viscount Bryce. By Lichnowsky. 122 pages. Price 75c. (Putnam).

"IMPERIAL ENGLAND," by Cecil F. Lavell and Charles E. Payne. Price $2.00. (Macmillan).

"A DECLARATION OF INTERDEPENDENCE." *Commemoration in London in 1918, of the 4th of July, 1776.* Introduction by George Haven Putnam. 32 pages. Price 10c.

"THE CHARACTER OF THE BRITISH EMPIRE," by Ramsay Muir. Price 5c. (Doran).

"THE ROOTS OF A WORLD COMMONWEALTH," by P. T. Forsyth, M.A., D.D. Price 10c. (Doran).

"GENERAL SMUTS'S MESSAGE TO SOUTH WALES." Price 5c. (Doran).

"THE TANKS," by Colonel E. D. Swinton, C.B., D.S.O., Royal Engineers. Price 5c. (Doran).

"LINGUISTIC OPPRESSION IN THE GERMAN EMPIRE," by Ernest Barker. Price 25c. (Harper).

"THE ECONOMIC WEAPON" (In the War Against Germany), by A. E. Zimmern. Price 5c. (Doran).

"WAR ON HOSPITAL SHIPS." *With Narratives of Eye-Witnesses and British and German Diplomatic Correspondence.* Price 25c. (Harper).

"BRITISH WAR AIMS." *Statement by Right Honorable David Lloyd George.* Price 10c. (Doran).

"THE BLACK SLAVES OF PRUSSIA." *An Open Letter addressed to General Smuts, by Frank Weston, D.D., Bishop of Zanzibar.* Price 10c. (Houghton Mifflin).

"ALLEGED GERMAN OUTRAGES." *Report of the Committee appointed by the British Government and presided over by Right Hon. Viscount Bryce.* Price 15c.